

RESOLUTION AUTHORIZING THE DONATION OF PERSONAL PROPERTY (1998 CARGO EXPRESS ENCLOSED CARGO TRAILER) TO THE BRECKSVILLE-BROADVIEW HEIGHTS BAND BOOSTERS

WHEREAS, the Board of Education of the Brecksville-Broadview Heights City School District (the "Board") previously adopted a Resolution establishing the Brecksville-Broadview Heights Donation Program (the "Program") for the donation of personal property that is no longer needed for public use, is obsolete, and whose fair market value is, in the opinion of the Board, is less than

\$2,500;

WHEREAS, the Program permits the donation of such property to an Eligible Organization, which is a nonprofit organization located in the State of Ohio and exempt from federal income taxation pursuant to 26 U.S.C. 501(a) and (c)(3);

WHEREAS, the Board previously determined that it is in possession of a trailer that is no longer needed for district use, is obsolete, or is otherwise unfit for the use for which it was originally acquired, and that such property, in the opinion of the Board, does not exceed

\$2,500;

WHEREAS, the trailer is a **1998 Cargo Express Enclosed Cargo Trailer**;

WHEREAS, the Brecksville-Broadview Heights Band Boosters is a District support organization that enhances the educational experiences of District students, thereby qualifying for priority status in the donation of property through the Program;

WHEREAS, the Brecksville-Broadview Heights Band Boosters has submitted the required written notice to the Board's Treasurer expressing its desire to obtain the trailer and has been determined to be an Eligible Organization;

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City School District, County of Cuyahoga, State of Ohio:

SECTION 1. The Board hereby determines that the **1998 Cargo Express Enclosed Cargo Trailer** is no longer needed for district use, is obsolete, or is otherwise unfit for the use for which it was originally acquired, and that its fair market value is less than \$2,500.

SECTION 2. The Board hereby authorizes and directs the Treasurer to donate the **1998 Cargo Express Enclosed Cargo Trailer** to the Brecksville-Broadview Heights Band Boosters, an Eligible Organization, pursuant to the terms and conditions of the Program and the requirements of Ohio Revised Code 3313.41.

SECTION 3. The donation of the trailer shall be made "**as is**", and the Brecksville-Broadview Heights Band Boosters shall be responsible for arranging for its authorized representative to pick up the donated property directly from the designated location.

SECTION 4. The Treasurer and Superintendent are hereby authorized to execute any and all documents necessary to effectuate this donation and to comply with the terms of the Program.

SECTION 5. It is hereby found and determined that all formal actions of the Board concerning and relating to the adoption of this Resolution were adopted in an open meeting of the Board, and that all deliberations of the Board and any of its committees that resulted in such formal action were open to the public when required by law, in full compliance with the law.